PECH GROUP HOLDINGS LTD

Technology & Infrastructure Enablers for Africa

PECH GROUP HOLDINGS

TABLE OF CONTENTS

TABLE OF CONTENTS

1. Parties & Definitions
2. Appointment & Position
3. Commencement & Probation
4. Place of Work
5. Working Hours
6. Remuneration
7. Statutory Benefits
8. Additional Benefits
9. Sales Targets & KPIs
10. Commission Structure
11. Marketing Materials & Brand Guidelines
12. Customer Relationship Management
13. Intellectual Property
14. Confidentiality
15. Non-Competition
16. Non-Solicitation
17. Media Policy
18. Data Protection
19. Code of Conduct
20. Termination
21. Dispute Resolution
22. General Provisions
23. Signature Block

1. PARTIES & DEFINITIONS

THIS OFFICE MARKETER EMPLOYMENT AGREEMENT (hereinafter referred to as the "Agreement") is made and entered into on this ____ day of _____, 20____

BETWEEN:

PECH GROUP HOLDINGS LTD (RC Number: ____), a company incorporated under the laws of the Federal Republic of Nigeria, with its registered office at Lagos, Nigeria (hereinafter referred to as the **"Employer"** or **"PECH"** or the **"Company"**)

AND:

Name: _____

Address: _____

NIN: _____

Phone Number: _____

Email Address: _____

(hereinafter referred to as the **"Employee"**)

The Employer and the Employee are hereinafter collectively referred to as the **"Parties"** and individually as a **"Party"**.

WHEREAS:

(A) The Employer is engaged in the business of technology and infrastructure solutions, including but not limited to IoT devices, smart systems, solar solutions, digital marketplace platforms, and enterprise technology services across Africa;

(B) The Employer wishes to engage the Employee as an Office Marketer to promote, market, and sell the Employer's products and services from the Employer's office premises in Lagos, Nigeria;

(C) The Employee possesses the skills, qualifications, and experience necessary for the role and wishes to accept such employment on the terms and conditions set out herein;

(D) The Parties wish to record the terms and conditions of the Employee's employment in this Agreement.

NOW THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1.1. Definitions

In this Agreement, unless the context otherwise requires:

Term	Definition
Business Day	Any day other than a Saturday, Sunday, or public holiday in Nigeria
Commencement Date	The date specified in Clause 3.1
Commission	Variable compensation paid to the Employee based on sales performance as detailed in Clause 10 and Schedule A
Confidential Information	As defined in Clause 14.1
Group	PECH Group Holdings Ltd and any subsidiary, affiliate, or associated company
Gross Misconduct	As defined in Clause 20.3
Intellectual Property	All patents, copyrights, trademarks, trade secrets, designs, inventions, algorithms, source code, databases, know-how, and all other intellectual property rights
KPIs	Key Performance Indicators as set out in Clause 9 and Schedule A
PECH Products	All products, services, platforms, and solutions offered by the Company including IoT devices, platform subscriptions, solar solutions, marketplace listings, and enterprise/custom solutions
Probationary Period	The period specified in Clause 3.2
Quarterly Sales Target	The minimum sales value the Employee is expected to achieve per quarter as specified in Clause 9

Sale Value	The total invoiced amount (exclusive of VAT) for a confirmed and completed sale attributable to the Employee

1.2. Interpretation

(a) References to clauses and schedules are to clauses of, and schedules to, this Agreement;

(b) Words importing the singular include the plural and vice versa;

(c) References to any statute or statutory provision include any modification, re-enactment, or extension thereof;

(d) Headings are for convenience only and shall not affect the interpretation of this Agreement.

2. APPOINTMENT & POSITION

2.1. The Employer hereby appoints the Employee to the position of **Office Marketer** within the Business Development and Sales Department of PECH Group Holdings Ltd.

2.2. The Employee shall report directly to the **Business Development Manager** or such other person as the Employer may designate from time to time.

2.3. The Employee's primary duties and responsibilities shall include, but are not limited to:

(a) Actively marketing and selling PECH Products to prospective and existing customers through office-based channels including telephone, email, virtual meetings, and in-person consultations;

(b) Generating and qualifying sales leads through research, outreach campaigns, networking, and referrals;

(c) Preparing and delivering compelling product presentations, demonstrations, and proposals to prospective clients;

(d) Maintaining accurate and up-to-date records of all sales activities, leads, prospects, and customer interactions in the Company's CRM system;

(e) Achieving or exceeding assigned sales targets and KPIs as set out in Clause 9 and Schedule A;

(f) Collaborating with the marketing team to develop and execute marketing campaigns, promotional materials, and digital marketing strategies;

(g) Providing timely and accurate sales forecasts and reports to the Business Development Manager;

(h) Attending and representing the Company at trade shows, exhibitions, industry events, and client meetings as directed;

(i) Building and maintaining strong, long-term customer relationships to drive repeat business and referrals;

(j) Staying current on industry trends, competitor activities, and market developments relevant to PECH Products;

(k) Providing feedback from the market to the product development and management teams to inform product improvements and new product development.

2.4. The Employee shall, in addition to the duties specified above, perform such other duties as may be reasonably assigned by the Employer from time to time, consistent with the Employee's position, qualifications, and experience.

2.5. The Employee shall devote their full working time, attention, and abilities to the business and affairs of the Employer during working hours, and shall not engage in any other employment, business, or professional activity without the prior written consent of the Employer.

3. COMMENCEMENT & PROBATION

3.1. **Commencement Date:** The Employee's employment shall commence on _____.

3.2. **Probationary Period:** The first three (3) months of employment shall constitute a probationary period during which:

(a) The Employee's performance, conduct, and suitability for the role shall be assessed against the criteria set out in Clause 9 and Schedule A;

(b) The Employee shall receive an orientation programme covering PECH Products, sales processes, CRM systems, brand guidelines, and Company policies;

(c) The Employee shall be assigned a mentor or supervisor who will provide guidance and regular feedback;

(d) Monthly performance reviews shall be conducted to assess the Employee's progress and identify areas for improvement;

(e) Either Party may terminate this Agreement by giving one (1) month's written notice.

3.3. **Extension of Probation:** The Employer may, at its discretion, extend the probationary period by a maximum of three (3) additional months if the Employee's performance requires improvement, with written notice of the extension and the specific areas requiring improvement provided to the Employee.

3.4. **Confirmation:** Upon successful completion of the probationary period, the Employee shall be confirmed in their appointment by written notification from the Employer. Confirmation is contingent upon the Employee meeting the minimum performance standards established for the probationary period.

3.5. **Pre-Conditions:** This Agreement is subject to the Employee providing the following prior to or on the Commencement Date:

(a) Two (2) completed and verified Guarantor Forms (as per the Company's Guarantor Form requirements);

(b) Valid means of identification (National ID, International Passport, or Driver's License);

(c) Evidence of educational qualifications and professional certifications;

(d) Two (2) recent passport photographs;

(e) Bank account details for salary payment.

4. PLACE OF WORK

4.1. The Employee's primary place of work shall be the Employer's office premises located at: _____, Lagos, Nigeria.

4.2. The Employee is required to be present at the office during standard working hours as specified in Clause 5, unless otherwise authorized by the Business Development Manager.

4.3. The Employer reserves the right to require the Employee to work at any other location of the Company, whether temporarily or permanently, with reasonable notice.

4.4. The Employee may be required to travel within Lagos, across Nigeria, and occasionally internationally

for client meetings, trade shows, exhibitions, and other business activities. Reasonable travel expenses incurred in the performance of duties shall be reimbursed in accordance with the Company's Travel and Expense Policy.

4.5. The Employer may, at its sole discretion, permit occasional remote working arrangements, subject to the Company's Remote Work Policy and the prior approval of the Business Development Manager.

5. WORKING HOURS

5.1. The Employee's standard working hours shall be **Monday to Friday, 9:00 AM to 6:00 PM** (45 hours per week), with a one-hour lunch break.

5.2. The Employee acknowledges that the nature of marketing and sales activities may occasionally require them to work additional hours beyond the standard working hours, including attendance at evening events, weekend exhibitions, or client functions, as may be necessary for the proper performance of their duties.

5.3. Any overtime worked beyond standard working hours must be pre-approved by the Business Development Manager. Overtime compensation shall be in accordance with the Company's overtime policy and the provisions of the Labour Act (Cap L1, LFN 2004).

5.4. The Employee shall maintain accurate records of their working hours and overtime, subject to verification by the Employer.

6. REMUNERATION

6.1. **Base Salary:** The Employee shall receive a gross monthly base salary of **NGN _____** (_____ Naira only), subject to all applicable statutory deductions.

6.2. **Commission:** In addition to the base salary, the Employee shall be entitled to commission payments calculated in accordance with the Commission Structure set out in Clause 10 and Schedule A of this Agreement.

6.3. **Total Compensation:** The Employee's total monthly compensation shall comprise the base salary plus any earned commission, subject to applicable deductions.

6.4. **Payment of Base Salary:** The base salary shall be paid on or before the **25th day** of each calendar month by electronic transfer to the Employee's designated bank account:

- **Bank Name: _____**
- **Account Number: _____**
- **Account Name: _____**

6.5. **Payment of Commission:** Commission earned shall be calculated at the end of each calendar month and paid together with the following month's base salary, subject to verification and approval by the Business Development Manager. Commission shall only be payable on confirmed and completed sales where the Company has received full payment from the customer.

6.6. **Statutory Deductions:** The following shall be deducted from the Employee's compensation:

(a) Employee's pension contribution (8% of monthly emolument) pursuant to the Pension Reform Act 2014;

(b) Pay-As-You-Earn (PAYE) tax as required by law;

(c) National Housing Fund contribution (2.5%) as required by law;

(d) Any other deductions required by law or authorized in writing by the Employee.

6.7. **Salary Review:** The Employee's base salary shall be reviewed annually at the discretion of the Employer, taking into account individual performance, sales achievement, company performance, and market conditions. A salary review does not guarantee a salary increase.

7. STATUTORY BENEFITS

The Employer shall provide the following statutory benefits in compliance with Nigerian law:

7.1. **Pension:** The Employer shall contribute ten percent (10%) of the Employee's monthly emolument to the Employee's Retirement Savings Account (RSA) with the Employee's chosen Pension Fund Administrator (PFA), in accordance with the Pension Reform Act 2014. The Employee shall contribute eight percent (8%) of their monthly emolument, which shall be deducted at source.

- **PFA Name: _____**
- **RSA PIN: _____**

7.2. **National Health Insurance:** The Employer shall enroll the Employee in a health insurance plan in compliance with the National Health Insurance Authority Act 2022 (NHIA Act). Coverage extends to the Employee and their eligible dependents as specified by the NHIA, including:

(a) The Employee's spouse;

(b) Up to four (4) biological or legally adopted children under the age of eighteen (18) years.

7.3. **Group Life Insurance:** The Employer shall maintain Group Life Insurance for the Employee providing a minimum benefit of three (3) times the Employee's annual gross salary, in accordance with the Pension Reform Act 2014 and the Employee Compensation Act 2010. The Employee shall designate their beneficiary(ies) as follows:

- **Primary Beneficiary: _____**
- **Relationship: _____**

7.4. **Employee Compensation (NSITF):** The Employer shall contribute one percent (1%) of total monthly payroll to the Nigeria Social Insurance Trust Fund (NSITF) in accordance with the Employee Compensation Act 2010, providing coverage for workplace injuries, occupational diseases, and work-related disabilities.

8. ADDITIONAL BENEFITS

8.1. **Annual Leave:** The Employee shall be entitled to twenty (20) working days of paid annual leave per calendar year (prorated for partial years). Leave must be scheduled with the approval of the Business Development Manager and in accordance with the Company's Leave Policy. Unused leave may not be carried forward beyond March 31 of the following year without prior written approval.

8.2. **Sick Leave:** The Employee shall be entitled to twelve (12) working days of paid sick leave per calendar year. A medical certificate from a registered medical practitioner shall be required for absences exceeding two (2) consecutive working days.

8.3. **Maternity Leave:** Female employees shall be entitled to twelve (12) weeks of maternity leave with full pay, in accordance with the Labour Act (Cap L1, LFN 2004). At least six (6) weeks must be taken after delivery. The Employee shall provide at least eight (8) weeks' written notice before the expected date of delivery.

8.4. **Paternity Leave:** Male employees shall be entitled to ten (10) working days of paid paternity leave, to be taken within three (3) months of the birth of their child. The Employee shall provide reasonable advance notice and evidence of the birth.

8.5. **Compassionate Leave:** The Employee shall be entitled to five (5) working days of paid compassionate leave per calendar year in the event of bereavement of an immediate family member or serious family emergency.

8.6. **Public Holidays:** The Employee shall be entitled to all gazetted public holidays in Nigeria.

8.7. **Professional Development:** The Employer may, at its discretion, provide or fund professional development opportunities, sales training programmes, marketing certifications, and attendance at industry conferences relevant to the Employee's role.

8.8. **Performance Bonus:** Where the Employee exceeds their Quarterly Sales Target by twenty percent (20%) or more, the Employee shall be entitled to a performance bonus equal to fifteen percent (15%) of their monthly base salary for that quarter. Performance bonuses shall be paid within thirty (30) days of the end of the qualifying quarter, subject to verification by the Business Development Manager and approval by the Head of Finance.

9. SALES TARGETS & KPIs

9.1. **Quarterly Sales Target:** The Employee shall be required to achieve a minimum Quarterly Sales Target of **NGN** _____ (_____ Naira only), as further detailed in Schedule A.

9.2. **Target Review:** Quarterly Sales Targets shall be reviewed and may be adjusted at the beginning of each quarter by the Business Development Manager in consultation with the Employee, taking into account market conditions, product availability, seasonal factors, and business priorities.

9.3. **Key Performance Indicators (KPIs):** The Employee's performance shall be evaluated against the following KPIs:

KPI	Description	Measurement
Sales Revenue	Total value of confirmed sales per quarter	NGN value against Quarterly Sales Target
Lead Generation	Number of qualified leads generated per month	Minimum _____ qualified leads per month
Conversion Rate	Percentage of qualified leads converted to sales	Minimum _____% conversion rate
Customer Retention	Percentage of existing customers retained or renewed	Minimum _____% retention rate
Pipeline Value	Total value of active sales pipeline	Minimum _____x quarterly target
CRM Compliance	Accuracy and timeliness of CRM data entry	100% of activities logged within 24 hours
Customer Satisfaction	Customer feedback and satisfaction scores	Average score of _____/5 or above

9.4. **Performance Reviews:** The Employee's performance against KPIs shall be reviewed:

(a) Monthly during the probationary period;

(b) Quarterly after confirmation;

(c) Annually as part of the Company's annual performance review process.

9.5. **Underperformance:** Where the Employee fails to meet the minimum Quarterly Sales Target for two (2)

consecutive quarters after confirmation, the Employer may:

(a) Place the Employee on a Performance Improvement Plan (PIP) of not less than sixty (60) days;

(b) Provide additional training, coaching, and support;

(c) Reassign the Employee's territory or product focus;

(d) If performance does not improve following the PIP, terminate the Employee's employment in accordance with Clause 20.

10. COMMISSION STRUCTURE

10.1. The Employee shall be entitled to commission on all confirmed and completed sales attributable to the Employee, calculated as follows:

Product/Service Category	Commission Rate	Basis of Calculation
IoT Devices & Hardware	5%	Of the total sale value (exclusive of VAT)
Platform Subscriptions	8%	Of the first 12 months' subscription value
Solar Solutions	6%	Of the total installation value (exclusive of VAT)
Marketplace Listings	3%	Of the listing fees collected
Enterprise/Custom Solutions	As per approved SOW	Commission rate to be specified in each approved Statement of Work

10.2. **Commission Eligibility:** Commission shall only be payable where:

(a) The sale is directly attributable to the Employee's efforts, as verified by the Business Development Manager;

(b) The customer has been invoiced and the Company has received full payment;

(c) The sale has not been reversed, refunded, or cancelled within thirty (30) days of completion;

(d) The Employee has properly recorded the sale in the Company's CRM system.

10.3. **Split Commission:** Where a sale is attributable to the efforts of more than one marketer or sales representative, commission shall be split as determined by the Business Development Manager, with the approval of the Head of Business Development. The decision of the Business Development Manager on commission allocation shall be final.

10.4. **Commission Cap:** Unless otherwise approved in writing by the Chief Executive Officer, the maximum commission payable to the Employee in any single calendar month shall not exceed one hundred percent (100%) of the Employee's monthly base salary.

10.5. **Commission During Probation:** During the probationary period, the Employee shall be entitled to commission at the rates specified in Clause 10.1, with no minimum threshold.

10.6. **Commission on Termination:** Upon termination of employment:

(a) The Employee shall be entitled to commission on all sales completed and fully paid for prior to the termination date;

(b) No commission shall be payable on sales completed or payments received after the termination date, regardless of the Employee's contribution to the sales pipeline;

(c) Any commission paid on sales that are subsequently reversed or refunded shall be recoverable by the Employer.

10.7. **Commission Review:** The commission rates set out in this Clause may be reviewed and adjusted by the Employer at the beginning of each financial year, with at least thirty (30) days' written notice to the Employee.

11. MARKETING MATERIALS & BRAND GUIDELINES

11.1. The Employer shall provide the Employee with approved marketing materials, including but not limited to product brochures, price lists, presentation templates, digital assets, and sample products, as required for the performance of their duties.

11.2. **Brand Compliance:** The Employee shall at all times adhere to the Company's brand guidelines, including:

(a) Use of approved PECH brand colors (Sky Blue #00BFFF, Orange/Amber #F5A623, Dark Blue #0099CC, and associated palette) in all materials;

(b) Use of approved logos, trademarks, and brand assets only in the manner prescribed by the Company's Brand Guidelines Manual;

(c) Ensuring all customer-facing communications reflect the Company's brand values of reliability, quality, and value for money;

(d) Not creating, modifying, or distributing any marketing materials without the prior approval of the Marketing Department.

11.3. **Prohibited Activities:** The Employee shall not:

(a) Make any false, misleading, or unauthorized representations about PECH Products, pricing, capabilities, or the Company;

(b) Offer unauthorized discounts, rebates, or special terms to customers without the written approval of the Business Development Manager;

(c) Use the Company's name, logo, or brand for any personal or unauthorized purpose;

(d) Engage in any marketing practice that may bring the Company into disrepute.

11.4. **Return of Materials:** All marketing materials, samples, and brand assets provided to the Employee remain the property of the Company and must be returned upon termination of employment or upon request.

12. CUSTOMER RELATIONSHIP MANAGEMENT

12.1. **CRM System:** The Employee shall use the Company's designated CRM system to record and manage all sales activities, customer interactions, leads, opportunities, and pipeline data. All entries must be accurate, complete, and made within twenty-four (24) hours of the relevant activity.

12.2. **Customer Ownership:** All customer relationships developed by the Employee in the course of their employment belong to the Company. The Employee shall not:

(a) Claim personal ownership of any customer accounts or relationships;

(b) Divert or attempt to divert any customer or business opportunity away from the Company;

(c) Contact or engage with Company customers for personal business purposes during or after employment.

12.3. **Customer Data:** All customer data, contact information, purchase histories, preferences, and communications collected by the Employee are the exclusive property of the Company and constitute Confidential Information under Clause 14.

12.4. **Customer Complaints:** The Employee shall promptly report any customer complaints, disputes, or issues to the Business Development Manager and shall cooperate fully in the resolution of such matters.

12.5. **Handover:** Upon termination of employment, the Employee shall provide a comprehensive handover of all customer accounts, active opportunities, and pipeline items to the Business Development Manager or their designated successor.

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13. INTELLECTUAL PROPERTY

THIS CLAUSE IS CRITICAL AND THE EMPLOYEE SHOULD READ IT CAREFULLY.

13.1. **Assignment of IP:** The Employee hereby irrevocably assigns to the Employer all right, title, and interest in and to all Intellectual Property created, developed, conceived, or reduced to practice by the Employee, whether alone or jointly with others, during the term of employment, including:

(a) Any Intellectual Property created during working hours or using the Employer's resources, equipment, or Confidential Information;

(b) Any Intellectual Property that relates to the business, products, services, marketing strategies, or research of the Employer or the Group;

(c) Any Intellectual Property created outside working hours if it relates to or is capable of being used in the Employer's business;

(d) All marketing strategies, campaign concepts, sales methodologies, customer databases, market research, and competitive analyses developed by the Employee during employment.

13.2. **Copyright Assignment:** Without prejudice to the generality of Clause 13.1, and in express compliance with the Copyright Act (Cap C28, LFN 2004), the Employee hereby assigns to the Employer all copyright and related rights in all works created during the course of employment. **The Employee acknowledges that under Nigerian law, copyright in works created by an employee may not automatically vest in the employer, and this express assignment is intended to ensure that all copyright vests in the Employer.**

13.3. **Moral Rights:** To the extent permitted by law, the Employee waives any moral rights in works created during the course of employment, including the right to be identified as the author and the right to object to derogatory treatment of the work.

13.4. **Pre-Existing IP:** The Employee shall disclose in **Schedule B** any pre-existing Intellectual Property that the Employee owns or has rights to as of the Commencement Date. Any IP not disclosed in Schedule B shall be deemed to have been created during employment.

13.5. **Further Assurance:** The Employee shall, at the Employer's expense, execute all documents and do all things necessary to give effect to this assignment, including assisting with patent applications, copyright registrations, trademark filings, and other IP filings.

13.6. **Survival:** The obligations under this Clause 13 shall survive the termination of this Agreement for any reason.

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14. CONFIDENTIALITY

14.1. **Definition:** "Confidential Information" means all information (whether written, oral, electronic, or in any other form) relating to the business, operations, finances, technology, customers, suppliers, employees, strategies, and affairs of the Employer and the Group, including but not limited to:

(a) Customer lists, contact details, purchase histories, pricing arrangements, and transactional data;

(b) Sales strategies, pricing structures, discount policies, commission rates, and marketing plans;

(c) Product roadmaps, product specifications, technical documentation, and trade secrets;

(d) Business plans, financial data, revenue figures, and projections;

(e) Source code, algorithms, software architecture, APIs, and platform infrastructure details;

(f) Employee data, salary information, and HR records;

(g) Supplier terms, vendor agreements, and procurement strategies;

(h) Any information marked or identified as confidential;

(i) Any information that a reasonable person would understand to be confidential.

14.2. **Obligations:** The Employee shall:

(a) Keep all Confidential Information strictly confidential and not disclose it to any third party without the prior written consent of the Employer;

(b) Use Confidential Information only for the proper performance of their duties;

(c) Take all reasonable measures to protect the confidentiality of such information;

(d) Not copy, reproduce, or store Confidential Information on personal devices or accounts except as expressly authorized by the Employer;

(e) Report immediately to the Business Development Manager any suspected or actual unauthorized disclosure of Confidential Information.

14.3. **Duration:** The Employee's obligations under this Clause:

(a) Shall apply during the term of employment and indefinitely thereafter for trade secrets;

(b) Shall apply for a period of five (5) years after termination for all other Confidential Information.

14.4. **Exceptions:** The obligations in this Clause shall not apply to information that:

(a) Is or becomes publicly available through no fault of the Employee;

(b) Was already known to the Employee before employment, as evidenced by written records;

(c) Is independently developed by the Employee after termination without reference to Confidential Information;

(d) Is required to be disclosed by law, regulation, or court order, provided the Employee gives the Employer prompt written notice and cooperates with any efforts to obtain a protective order.

14.5. **Return of Materials:** Upon termination of employment or at any time upon the Employer's request, the Employee shall immediately return all documents, electronic files, equipment, and materials containing or relating to Confidential Information, and shall permanently delete all electronic copies in their possession or control.

15. NON-COMPETITION

15.1. The Employee agrees that during the term of employment and for a period of **twelve (12) months** after the termination of employment (the "Restriction Period"), the Employee shall not, directly or indirectly, without the prior written consent of the Employer:

(a) Be employed by, engaged by, or provide services to any business that is in direct competition with the business of the Employer or the Group within the Restricted Territory;

(b) Establish, own, manage, operate, or participate in any business that competes with the Employer or the Group within the Restricted Territory;

(c) Assist any person or entity in competing with the Employer or the Group within the Restricted Territory.

15.2. **Restricted Territory:** Nigeria and any other country in which the Employer or the Group operates or has concrete plans to operate at the date of termination.

15.3. **Competing Business:** For the purposes of this Clause, a "Competing Business" means a business that operates in the same or substantially similar market segments as the Employer, including but not limited to: IoT platforms and devices, smart systems, solar energy solutions, digital marketplace platforms, commerce operating systems, payment processing, logistics technology, and smart infrastructure.

15.4. **Reasonableness:** The Parties agree that the restrictions in this Clause are reasonable and necessary to protect the legitimate business interests of the Employer, including its Confidential Information, customer relationships, and goodwill. If any court of competent jurisdiction determines that any restriction is unreasonable, the court may reduce the scope, duration, or territory of the restriction to the extent necessary to make it enforceable.

15.5. **Consideration:** The Employee acknowledges that the employment, remuneration, commission, and benefits under this Agreement constitute adequate consideration for the restrictions in this Clause.

16. NON-SOLICITATION

16.1. The Employee agrees that during the term of employment and for a period of **twenty-four (24) months** after the termination of employment, the Employee shall not, directly or indirectly:

(a) Solicit, entice away, or attempt to solicit or entice away from the Employer or the Group any employee, contractor, consultant, or agent;

(b) Solicit, canvass, or approach any customer, client, or prospective customer of the Employer or the Group with whom the Employee had dealings during the last twelve (12) months of employment, for the purpose of offering competing products or services;

(c) Solicit, canvass, or approach any supplier of the Employer or the Group for the purpose of diverting business away from the Employer;

(d) Interfere with or seek to undermine the relationship between the Employer and any of its employees, contractors, customers, or suppliers.

16.2. **Severability:** If a court of competent jurisdiction determines that the twenty-four (24) month duration specified in Clause 16.1 is unreasonable or unenforceable, the court is hereby requested to substitute the maximum duration that it considers reasonable and enforceable, and the remaining provisions of this Clause shall continue in full force and effect.

16.3. **Scope:** The restrictions in this Clause shall apply irrespective of the reason for termination, including voluntary resignation, dismissal, redundancy, or expiry of any fixed term.

16.4. **Reasonableness:** The Parties acknowledge that the restrictions in this Clause are reasonable and necessary to protect the Employer's legitimate business interests, including the preservation of its customer relationships, business connections, and workforce stability.

17. MEDIA POLICY

17.1. The Employee shall not, during the term of employment or at any time thereafter, without the prior written approval of the Chief Executive Officer or designated Communications Officer of the Employer:

(a) Give any public interview, press statement, or media appearance relating to the business, operations, or affairs of the Employer or the Group;

(b) Post, publish, or share on any social media platform, blog, website, podcast, or other public forum any information relating to the Employer or the Group;

(c) Participate in any conference, seminar, panel discussion, or speaking engagement where information about the Employer or the Group may be discussed;

(d) Author or co-author any article, paper, or publication that references the Employer or the Group.

17.2. **Social Media:** The Employee may, with the prior approval of the Business Development Manager, share approved Company marketing content on their personal social media accounts for the purpose of promoting PECH Products, provided that:

(a) Only officially approved content and messaging is used;

(b) No Confidential Information is disclosed;

(c) The Employee clearly identifies themselves as a PECH employee;

(d) All posts comply with the Company's Brand Guidelines and Social Media Policy.

17.3. **Permitted Disclosures:** The Employee may disclose their job title and a general description of their role (e.g., for LinkedIn profiles or professional networking), but shall not disclose any Confidential Information or specific details about the Employer's projects, clients, technology, sales figures, or strategy.

17.4. **Breach:** Any unauthorized public communication shall constitute Gross Misconduct and may result in summary dismissal and/or legal action for damages.

17.5. The Employee acknowledges that they have read and understood the **PECH Media and Public Communications Policy** and agrees to be bound by its terms.

18. DATA PROTECTION

18.1. In accordance with the Nigeria Data Protection Act 2023 (NDPA), the Employee consents to the Employer processing their personal data for the following purposes:

(a) Administration of the employment relationship;

(b) Payment of salary, commission, and benefits;

(c) Pension administration;

(d) Health insurance enrollment;

(e) Performance management, sales tracking, and training;

(f) Compliance with legal and regulatory obligations;

(g) Security and access control;

(h) Internal communications and directory services.

18.2. **Categories of Data:** The Employer may collect and process the following categories of personal data: name, address, contact details, date of birth, NIN, bank details, next of kin, medical information (as necessary), performance records, sales records, disciplinary records, and professional qualifications.

18.3. **Third-Party Sharing:** The Employer may share the Employee's personal data with:

(a) Pension Fund Administrators (PFAs) and Pension Fund Custodians (PFCs);

(b) National Health Insurance Authority (NHIA) and Health Maintenance Organizations (HMOs);

(c) Insurance providers;

(d) Nigeria Social Insurance Trust Fund (NSITF);

(e) Tax authorities (FIRS, State Internal Revenue Service);

(f) Regulatory authorities as required by law;

(g) Professional advisors (auditors, legal counsel).

18.4. **Employee Obligations:** In the course of their duties, the Employee shall:

(a) Process customer personal data only in accordance with the Company's Data Protection Policy and the NDPA 2023;

(b) Not collect, store, or process customer personal data on personal devices, accounts, or systems without authorization;

(c) Report any data breach or suspected data breach immediately to the Business Development Manager and the Data Protection Officer.

18.5. **Data Retention:** The Employer shall retain the Employee's personal data for the duration of employment and for a period of six (6) years after termination, or as required by applicable law.

18.6. **Employee Rights:** The Employee has the right to access, correct, and request deletion of their personal data, subject to the Employer's legal obligations and legitimate interests.

19. CODE OF CONDUCT

19.1. The Employee shall at all times conduct themselves in a professional manner and in accordance with the Company's Code of Conduct, policies, and procedures as amended from time to time.

19.2. The Employee shall:

(a) Act with honesty, integrity, and professionalism in all dealings with customers, colleagues, and third parties;

(b) Comply with all applicable laws and regulations, including consumer protection laws and advertising

standards;

(c) Not engage in any form of corruption, bribery, or fraudulent activity, including offering or accepting kickbacks from customers or suppliers;

(d) Declare any conflict of interest or potential conflict of interest to the Business Development Manager and/or HR;

(e) Use the Company's equipment, assets, and resources only for authorized business purposes;

(f) Comply with the Company's IT security policies, including the acceptable use of Company networks, devices, CRM systems, and accounts;

(g) Treat all colleagues, clients, and third parties with respect and dignity;

(h) Not engage in harassment, discrimination, or bullying of any kind;

(i) Maintain a professional appearance and dress code appropriate to the office environment and client-facing activities;

(j) Not engage in any activity that may bring the Company into disrepute;

(k) Report any unethical behavior, misconduct, or policy violation to the appropriate authority within the Company.

19.3. **Anti-Bribery:** The Employee specifically acknowledges that offering or providing any gift, payment, entertainment, or other benefit to any person for the purpose of obtaining or retaining business, or to influence any business decision, is strictly prohibited and constitutes Gross Misconduct.

20. TERMINATION

20.1. **Notice Periods:**

Period	Notice Required
During probation	1 month written notice by either Party
After confirmation	2 months written notice by either Party

20.2. **Payment in Lieu of Notice (PILON):** The Employer may, at its sole discretion, make a payment in lieu of notice equivalent to the Employee's base salary (excluding commission) for the applicable notice period.

20.3. **Termination for Gross Misconduct:** The Employer may summarily dismiss the Employee without notice or payment in lieu of notice for Gross Misconduct, which includes but is not limited to:

(a) Theft, fraud, or dishonesty;

(b) Willful damage to Company property;

(c) Breach of confidentiality or disclosure of Confidential Information;

(d) Gross insubordination;

(e) Conviction of a criminal offense (other than a minor traffic offense);

(f) Being engaged in or establishing a competing business during employment;

(g) Unauthorized public communication in breach of Clause 17;

(h) Serious breach of the Company's policies or procedures;

(i) Habitual absence without leave or permission;

(j) Being under the influence of alcohol or illegal drugs during working hours;

(k) Harassment, discrimination, or bullying;

(l) Falsification of records, qualifications, sales figures, or work history;

(m) Diverting Company customers or business opportunities for personal gain;

(n) Making unauthorized discounts, representations, or commitments on behalf of the Company;

(o) Misuse or misappropriation of Company marketing materials, samples, or funds.

20.4. **Termination for Poor Performance:** Where the Employee consistently fails to meet sales targets and KPIs after the completion of a Performance Improvement Plan as described in Clause 9.5, the Employer may terminate the Employee's employment with the applicable notice period.

20.5. **Return of Company Property:** Upon termination (for any reason) or at any time upon the Employer's request, the Employee shall immediately return:

(a) All Company laptops, phones, tablets, and other electronic devices;

(b) All access cards, keys, and security tokens;

(c) All documents, files, records (physical and electronic);

(d) All marketing materials, product samples, brochures, and brand assets;

(e) All Confidential Information in any form;

(f) All customer data, contact lists, and CRM records (which shall not be copied or retained by the Employee).

20.6. **Exit Interview:** The Employee shall attend an exit interview conducted by the HR department or designated officer.

20.7. **Handover:** The Employee shall prepare a comprehensive handover of all customer accounts, active sales pipelines, pending proposals, and ongoing projects within the notice period.

20.8. **Final Settlement:** The Employer shall pay all outstanding amounts (salary, accrued commission, accrued leave, pension contributions) within thirty (30) days of the termination date, subject to any lawful deductions and the return of all Company property.

21. DISPUTE RESOLUTION

21.1. **Internal Grievance:** Any dispute arising from or in connection with this Agreement shall first be addressed through the Company's internal grievance procedure. The Employee shall submit a written grievance to the HR department, which shall acknowledge receipt within three (3) Business Days and provide a substantive response within fourteen (14) Business Days.

21.2. **Mediation:** If the dispute is not resolved through the internal grievance procedure, the Parties shall attempt to resolve it through mediation administered by a mutually agreed mediator in Lagos, Nigeria, within thirty (30) days. The costs of mediation shall be borne equally by the Parties.

21.3. **Arbitration:** If mediation fails or is not initiated within the prescribed period, the dispute shall be referred to and finally resolved by arbitration in Lagos, Nigeria, in accordance with the Arbitration and Mediation Act 2023. The arbitration shall be conducted by a sole arbitrator appointed by agreement of the Parties, or in default of agreement, by the President of the Nigerian Bar Association (NBA). The decision of the arbitrator shall be final and binding on both Parties.

21.4. **Injunctive Relief:** Notwithstanding the foregoing, the Employer shall be entitled to seek injunctive or other equitable relief from any court of competent jurisdiction to prevent or restrain any breach or threatened breach of Clauses 13, 14, 15, 16, or 17 of this Agreement, without the requirement to first exhaust the dispute resolution procedures set out in this Clause.

21.5. **Governing Law:** This Agreement shall be governed by and construed in accordance with the laws of the Federal Republic of Nigeria, including but not limited to:

(a) The Labour Act (Cap L1, LFN 2004);

(b) The Nigeria Data Protection Act 2023 (NDPA);

(c) The Pension Reform Act 2014;

(d) The National Health Insurance Authority Act 2022 (NHIA Act);

(e) The Employee Compensation Act 2010;

(f) The Arbitration and Mediation Act 2023.

22. GENERAL PROVISIONS

22.1. **Entire Agreement:** This Agreement, together with its Schedules, constitutes the entire agreement between the Parties relating to the Employee's employment as an Office Marketer and supersedes all prior agreements, representations, negotiations, and understandings, whether written or oral.

22.2. **Severability:** If any provision of this Agreement is found by a court of competent jurisdiction to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid and enforceable, and the remaining provisions shall continue in full force and effect.

22.3. **Waiver:** No waiver of any breach of this Agreement shall be deemed a waiver of any subsequent breach. No waiver shall be effective unless made in writing and signed by the waiving Party.

22.4. **Amendment:** This Agreement may only be amended by a written instrument signed by both Parties.

22.5. **No Assignment:** The Employee may not assign or transfer any rights or obligations under this Agreement without the prior written consent of the Employer.

22.6. **Counterparts:** This Agreement may be executed in counterparts, each of which shall constitute an original and all of which together shall constitute one agreement.

22.7. **Notices:** All notices under this Agreement shall be in writing and delivered personally, by registered post, or by email to the addresses specified in this Agreement. Notices shall be deemed received:

(a) If delivered personally, upon delivery;

(b) If sent by registered post, five (5) Business Days after posting;

(c) If sent by email, upon confirmed receipt.

22.8. **Survival:** Clauses 13 (Intellectual Property), 14 (Confidentiality), 15 (Non-Competition), 16 (Non-Solicitation), 17 (Media Policy), and 18 (Data Protection) shall survive the termination of this Agreement for any reason.

22.9. **Relationship of the Parties:** The Employee is an employee of the Employer. This Agreement creates an employment relationship and the Employee is entitled to all statutory benefits and protections afforded to employees under Nigerian law. Nothing in this Agreement shall be construed to create a partnership, joint venture, or agency relationship.

23. SIGNATURE BLOCK

DECLARATION

By signing below, the Employee confirms that:

(a) They have read and understood the terms of this Agreement in its entirety;

(b) They have had the opportunity to seek independent legal advice before signing;

(c) They agree to be bound by the terms and conditions set out herein;

(d) All information provided by them is true, accurate, and complete;

(e) They have disclosed any pre-existing Intellectual Property in Schedule B;

(f) They have provided the required Guarantor Forms;

(g) They understand that their compensation includes both a base salary and performance-based commission.

FOR AND ON BEHALF OF PECH GROUP HOLDINGS LTD:

Name:	_____
Title:	_____
Signature:	_____
Date:	_____

EMPLOYEE:

Name:	_____
Signature:	_____
Date:	_____

WITNESS:

Name:	_____
Address:	_____
Occupation:	_____
Signature:	_____
Date:	_____

SCHEDULE A: SALES TARGETS & COMMISSION DETAILS

A.1 Quarterly Sales Targets

Quarter	Period	Sales Target (NGN)	Status
Q1	January - March	_____	
Q2	April - June	_____	
Q3	July - September	_____	
Q4	October - December	_____	

A.2 Commission Rate Summary

Product/Service Category	Commission Rate	Basis
IoT Devices & Hardware	5%	Total sale value (excl. VAT)
Platform Subscriptions	8%	First 12 months' subscription value
Solar Solutions	6%	Total installation value (excl. VAT)
Marketplace Listings	3%	Listing fees collected
Enterprise/Custom Solutions	Per approved SOW	As specified in each SOW

A.3 Performance Bonus Thresholds

Achievement Level	Bonus
Below 100% of Quarterly Target	No bonus
100% - 119% of Quarterly Target	No bonus (commission applies)
120% or above of Quarterly Target	15% of monthly base salary for the quarter

A.4 Monthly Lead Generation Targets

Month	Minimum Qualified Leads	Target Conversion Rate
Month 1	_____	_____%
Month 2	_____	_____%
Month 3	_____	_____%

A.5 Assigned Product Lines

Product Line	Territory/Segment	Notes
_____	_____	_____
_____	_____	_____
_____	_____	_____

Approved by:

Business Development Manager:	_____
Signature:	_____
Date:	_____

Employee Acknowledgment:

I acknowledge that I have reviewed and understood the sales targets and commission details set out in this Schedule A.

Employee Name:	_____
Signature:	_____
Date:	_____

SCHEDULE B: PRE-EXISTING INTELLECTUAL PROPERTY

The Employee declares the following pre-existing Intellectual Property:

Description	Date Created	Nature of IP
_____	____	___
_____	____	___
_____	____	___

[ ] I confirm I have no pre-existing Intellectual Property to declare.

Employee Signature: _____ Date: ___

PECH GROUP HOLDINGS LTD

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